MEADOW POINTE II
Community Development District

PASCO COUNTY PLANNING COMMISSION 7/09/08

PETITION NO. CU08-32; OPC RETAIL PARTNERS,LLC/CVS

- The CVS store will be located in the heart of the Meadow Pointe II Community Development District, across the street from the Meadow Pointe II Clubhouse, park and recreational amenities.
- The Board of Supervisors of the CDD discussed the proposed wetzoning at our June 18, 2008 meeting and each member was opposed to the proposed wetzoning. At that meeting, the Board members agreed that I should appear at the public hearings on this application and present the Boards position.
- The County's Land Development Code requires a minimum distance of 1000 feet between wetzoned parcels and public parks. Our public facilities are only 250 feet away from the CVS store.
- Following our conversations with County staff, it is our understanding that based on their interpretation of the Code, a CDD park is not a public park for purposes of this minimum distance requirement. As you know, the CDD is a local unit of special purpose government. All of our facilities must be available for use by the general public.
- Like any County park, our park, clubhouse and recreational facilities are gathering places for families, and young people in our community.
- We believe the sale of alcoholic beverages in the heart of our community is not consistent with the character of our public park, recreational facilities or the surrounding residential community. Residents said they feared an increase in traffic, pollution, noise and perhaps crime.
- It is our contention that the increased traffic and type of patron that a wetzone will generate will increase safety concerns. The projection of the school enrollment for the 2008/2009 school year (three schools in immediate area)is 4648, up considerably. School age children walk by the three ingress/egress locations on the property regularly. These areas are already very conjested, so

)051 County Line Rd., Wesley Chapel, FL 33543 Phone: (813) 991-5016 Fax: (813) 991-6169

p.2
DEVELOPMENT SERVICES
RECEIVED 07/14/2008 14:41 7278478884 HP LASERJET FAX
Jul 14 2008 1:22PM

much so, that Pasco County is currently expanding turning lanes, installing permanent traffic signals,and constructing a multi-use trail to handle school children foot traffic and the elderly going immediately past the CVS access point on Mansfield Blvd. Similar safety concerns exit on the County Line Rd. side at the two ingress/egress points.

- Mansfield Blvd. currently on the south end as it would enter Hillsborough County is barricaded. It is felt that when State Rd. 56 to the north connects to Mansfield Blvd. that this barricade will be removed and thus all the traffic from that direction will pass through Mansfield Blvd. and County Line Rd. It is my understanding that there is not adequate ROW on Mansfield Blvd. to widen it. This situation will add considerably to the traffic safety issues already created by the access to a wetzone.

- A February 2005 article in The St. Pete Times quotes Patrict Berman, leasing agent for the CVS site land owner, " County Line Rd. draws 12,000 car trips a day through Meadow Pointe." "More traffic arrives when builders extend the Mansfield north to State Road 56."

- About this same time, the land owner was attempting to get a "Special Exception" from Pasco County to put a convenience store at this site. The Planning Commission instead sided with residents, who said it would create noise and traffic and endanger more than 400 children who attend a nearby school.The St. Pete Times quotes Commissioner Pat Mulieri , "If you know the area, you know of the children who walk there." "I believe it would adversely affect the safety of the public."Ultimately, Commissioners Pat Mulieri, Ann Hildebrand and Ted Schrader voted to uphold the Planning Commission vote against the developer.

- For these reasons, we ask that you deny this conditional use permit application.

- Thank you very much for your interest, consideration and hopefully positive response to our request for denial.

Jul 14 2008 1:22PM HP LASERJET FAX
DEVELOPMENT SERVICES
p.3

CU08-32.

Denise B. Hernandez

From: Debra M. Zampetti
Sent: Thursday, July 17, 2008 11:02 AM
To: Denise B. Hernandez
Subject: FW: Sale of Alcohol and Beer at CVS in Meadow Pointe

Correspondence.

Debra M. Zampetti
Zoning/Code Compliance Administrator
7530 Little Rd. Suite 323
New Port Richey, FL 34654
(727)847-8132
-----Original Message-----
From: Pat Mulieri
Sent: Wednesday, July 16, 2008 8:18 PM
To: Debra M. Zampetti
Subject: Fw: Sale of Alcohol and Beer at CVS in Meadow Pointe

Patricia Mulieri, Ed D

-----Original Message-----
From: fred <flane3@tampabay.rr.com>
To: Pat Mulieri
Sent: Wed Jul 16 15:32:17 2008
Subject: Sale of Alcohol and Beer at CVS in Meadow Pointe

Good Day Pat!

I just wanted to voice my concern over the sale of beer and alcohol that is planning to be sold at the up-coming CVS on County Line Road in Meadow Pointe....I am vehemently opposed to this idea as are alot of other Meadow Pointe residents for the obvious reasons such as the CVS is too close to the Meadow Point II clubhouse where children play and swim, too close to the nearby schools and the child care directly across the street...The sale of alcohol will only encourage under age drinking, drunk driving and loitering at the CVS parking lot or at the park across the street by the younger folks who WILL find a way to purchase even if they are underage!...I feel the sale of alcohol at this store is not necessary as there is a new ABC Spirits shop being built directly outside of Meadow Pointe on BBD Blvd for those who feel the need to purchase..

A majority of the residents of Meadow Pointe are asking your help to deny this application for the sale of alcohol and beer to CVS.

Thank you for your time and consideration of our appeal!

Barbara A Lane
30451 Lanesborough Circle
Wesley Chapel, FL 33543
(813) 472-9583
Meadow Pointe III resident